

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DIONNE CAMPBELL,

Plaintiff,

Index #:

-against-

SUMMONS

THE CITY OF NEW YORK; THE NEW YORK
CITY POLICE DEPARTMENT; BRIAN
CHENG, and KEECHANT SEWELL,

Defendants,
-----X

Plaintiff designates KINGS COUNTY as the place of trial.

The basis of venue is the place of the occurrence

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint of this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within TWENTY (20) DAYS after the service of this summons, exclusive of the day of service (or within THIRTY (30) DAYS after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief request in the complaint.

Dated: September 15, 2022



ATTORNEY FOR PLAINTIFF
G. WESLEY SIMPSON, P.C.
1016 Ralph Avenue, 1st Floor
Brooklyn, New York 11236
(718) 345 8213

Defendants' Address:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

BRIAN CHENG
1 Police Plaza
New York, New York 10038

KEECHANT SEWELL
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DIONNE CAMPBELL,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK; THE NEW YORK
CITY POLICE DEPARTMENT; BRIAN
CHENG, and KEECHANT SEWELL,
Defendants,

-----X

Plaintiff, by his attorney, G. WESLEY SIMPSON, P.C., complaining of the defendants
alleges as follows:

1. That at all times hereinafter mentioned Plaintiff DIONNE CAMPBELL is an African American female.
2. That at all times hereinafter mentioned BRIAN CHENG is a male of Asian descent.
3. That at all times hereinafter mentioned and on or about July 16, 2021, at approximately between 7:00 and 8:00 p.m., Plaintiff DIONNE CAMPBELL was subject to unnecessary, unreasonable and unconsented to use of excessive force by Defendant BRIAN CHENG.
4. That at all times hereinafter mentioned and on or about July 16, 2021, at approximately between 7:00 and 8:00 p.m., Defendant BRIAN CHENG caused Plaintiff DIONNE CAMPBELL to suffer serious injuries, by his use of unreasonable, unconsented and unnecessary violence against Plaintiff while at her nephew's apartment at 379 Amboy Street, 2nd Floor, Brooklyn, New York picking up his clothes.

5. That at all times hereinafter mentioned Plaintiff's nephew gave her the keys to his apartment at 379 Amboy Street, 2nd Floor, Brooklyn, New York and asked her to pick up his clothes.

6. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff was at her nephew's apartment to retrieve his clothes.

7. That at all times hereinafter mentioned and on or about July 16, 2021 BRIAN CHENG knocked on the apartment door while Plaintiff was inside

8. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff DIONNE CAMPBELL asked BRIAN CHENG to give her a second to open the door.

9. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff opened the apartment door and let BRIAN CHENG in.

10. That at all times hereinafter mentioned and on or about July 16, 2021 BRIAN CHENG after entering the apartment, PO Cheng asked Plaintiff what she was doing there.

11. That at all times hereinafter mentioned and on or about July 16, 2021, Plaintiff informed BRIAN CHENG the apartment belongs to nephew and he gave her the keys and asked her to pick up his clothes for him.

12. That at all times hereinafter mentioned and on or about July 16, 2021 Officer Cheng demanded the keys to her nephew's apartment and Plaintiff gave the keys to him.

13. That at all times hereinafter mentioned and on or about July 16, 2021 Defendant BRIAN CHENG ordered Plaintiff to get out of her nephew's apartment.

14. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff asked BRIAN CHENG to allow her to put her shoes on.

15. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff bend down behind the apartment door to put her shoes on.

16. That at all times hereinafter mentioned and on or about July 16, 2021 Defendant BRIAN CHENG without reason, justification or the consent of plaintiff used door to violently strike Plaintiff's body including her head as put her shoes on.

17. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff complained to BRIAN CHENG that he struck her with the door.

18. That at all times hereinafter mentioned and on or about July 16, 2021 Defendant BRIAN CHENG admitted he knew he struck Plaintiff with the door and threaten to hit her with the door again.

19. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff was on her cell phone talking to her nephew when Defendant BRIAN CHENG grabbed the phone from her, ordered her to hurry and leave the building before he pushes her down the stairs.

20. That at all times hereinafter mentioned and on or about July 16, 2021 Plaintiff asked Defendant BRIAN CHENG to return her phone but he refused.

21. That after Plaintiff exited the building, she and called the police and an ambulance. Police Officer Sergeant Peacock of the 73rd police precinct came to the scene and Plaintiff told him what happened.

22. That as a result of the foregoing plaintiff sustained serious injuries.

FIRST CAUSE OF ACTION: 42 U.S.C. §1983 - Violation of the 4th Amendment of the United States Constitution.

23. That Plaintiff hereby incorporates by reference the allegations contained in paragraphs 1-22, with the same force and effect as if fully set forth below.

24. That pursuant to *Felder v. Casey*, 487 US 131, 108 S. Ct. 2302, 101 L. Ed. 2d 123 (1988) a plaintiff bringing an action under section 1983 need not comply with a state's notice of claim requirements.

25. That Defendant BRIAN CHENG, while acting under the color of the law, violated MS CHAMPBELL's constitutional rights by unreasonably using excessive force against her, which resulted in MS CAMPBELL's injuries.

26. That Defendant BRIAN CHENG's use of excessive and unnecessary violence against MS CHAMPBELL was unjustified and not consented to by Plaintiff.

27. That Plaintiff MS CAMPBELL at all times herein mentioned was conscious of and had personal knowledge of the unreasonable and excessive force used against her by Defendant without her consent.

28. That Defendant BRIAN CHENG's actions violated MS CAMPBELL's the constitutional rights guaranteed to her under the Fourth Amendment of the United States Constitution.

29. That the actions of Defendant BRIAN CHENG were not taken in good-faith and violated established laws.

30. That Defendant BRIAN CHENG used excessive force when he unreasonably and unlawfully struck Plaintiff MS CAMPBELL with the door.

32. That Defendant BRIAN CHENG's actions were unnecessary, unreasonable, unlawful, and unjustified as there were no exigent circumstance presented and there was no threat of immediate harm to BRIAN CHENG or anyone at the location on the date and at the time of the use of violence against plaintiff.

33. That as a direct and proximate result of the Defendants' unreasonable and

unlawful actions, the Plaintiff has suffered and continues to suffer substantial past and future damages, both compensatory and general, including, but not limited to, medical bills, loss of income, severe emotional distress, mental anguish, embarrassment, humiliation, physical pain and suffering.

34. That Defendant BRIAN CHENG's actions, were "motivated by evil motive or intent" and/or "involve[d] a reckless or callous indifference to the federally protected rights of [the Plaintiff]," consequently, an award of punitive damages is appropriate to the fullest extent permitted by law. *Smith v. Wade*, 461 U.S. 30 (1983)).

35. That based on the unauthorized and unlawful violation of Plaintiff's constitutional rights, by Defendants, plaintiff was damaged in an amount the exceeds the jurisdiction of lower courts.

SECOND CAUSE OF ACTION: 42 U.S.C. §1983 – Monell Liability.

36. That Plaintiff incorporates by reference the allegations contained in paragraphs 1-35 with the same force and effect as if fully set forth below.

37. That the New York City Police Department (NYPD) is the law enforcement agency of the City of New York (NYC), State of New York.

38. That the Chief of the NYPD is the "policymaker" with respect to NYPD, as a law enforcement agency.

39. That under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), and *Pembaur v. City of Cincinnati*, 475 U.S. 469, 481, 106 S. Ct. 1292, 89 L. Ed. 2d 452 (1986) municipal liability can attach for decisions made by a final policymaker in certain circumstances, regardless of whether or not the action is taken once or repeatedly.

40. That pursuant to Monell and City of St. Louis v. Praprotnik, 485 U.S. 112, 127 (1988), where an authorized policymaker approves a subordinate's decision and the basis for it, such ratification is chargeable to the municipality.

41. That Defendant KEECHANT SEWELL, as the chief of police and policymaker for the NYPD, has a custom, pattern, practice, and/or procedure of hiring police officers who she knows have committed acts of violence and/or have a propensity to do so.

42. That Defendant KEECHANT SEWELL, as the chief of police and policymaker for the NYPD, has a custom, pattern, practice, and/or procedure of retaining police officers who she knows have committed acts of violence and/or have a propensity to do so.

43. That Defendants NYC, NYPD and other policymakers for the NYPD, has a custom, pattern, practice, and/or procedure of hiring police officers they know committed acts of violence and/or have a propensity to do so.

44. That Defendants NYC, NYPD and other policymakers for the NYPD, has a custom, pattern, practice, and/or procedure of retaining police officers they know committed acts of violence and/or have a propensity to do so.

45. That Defendants NYC, NYPD and other policymakers for the NYPD, has a custom, pattern, practice, and/or procedure of not discharging police officers they know committed acts of violence and/or have a propensity to do so.

46. That defendants' failure to properly train, supervise, and discipline its employees amounting in a deliberate indifference to plaintiff's constitutional rights.

47. That the Defendants: NYC, NYPD and KEECHANT SEWELL had a duty to properly train, supervise, and discipline their employees and agents.

48. That the Defendants breached that duty, in part, by improperly training, authorizing, encouraging or directing officers on proper use of force against Blacks.

49. That the Defendants breached that duty, in part, by failing to investigate allegations of use of excessive force.

50. That the Defendants breached that duty, in part, by failing to discipline officers for violations of policy related to use of excessive force.

51. That the policy, pattern of practice, or custom of condoned misconduct is tacitly or overtly sanctioned, as evidenced by the conduct of Defendant BRIAN CHENG and the Defendant entities' failure to train, supervise, investigate, and discipline officers for disproportionately using violence against Blacks in deliberate indifference to Plaintiff's constitutional rights.

52. That this unconstitutional behavior of officers is carried out pursuant to a policy, pattern of practice, or custom, whether formal or informal, which violates the constitutional rights of persons situated such as the Plaintiff.

53. That Defendants NYC, NYPD and KEECHANT SEWELL failed to take sufficient remedial actions to end this policy, pattern of practice, or custom within the NYPD.

54. That Defendants' condoning of misconduct, and their failure to end this policy, pattern of practice, or custom was a proximate cause to the injuries suffered by Plaintiff.

55. That Defendants NYC, NYPD and KEECHANT SEWELL owed a duty of care to Plaintiff to exercise reasonable care in hiring, retaining, and supervising their employees.

56. That Defendants NYC, NYPD and KEECHANT SEWELL knew or should have known of Defendant BRIAN CHENG's dangerous character based on prior complaints of excessive force violations and/or background checks including psychological evaluations.

57. That Defendants NYC, NYPD and KEECHANT SEWELL breached their duty of care to Plaintiff by failing to properly supervise, provide training, and take remedial measures, such as discharge or reassignment, against their employees that disproportionately use unnecessary violence against Blacks to ensure the safety of Plaintiff.

58. That as a direct and proximate cause of Defendants' negligent acts, Plaintiff reasonably feared for her safety and suffered severe emotional distress.

59. That Defendants NYC, NYPD and other policymakers for the NYPD, has a custom, pattern, practice, and/or procedure of not retraining police officers they know committed acts of violence and/or have a propensity to do so.

60. That Defendants NYC, NYPD and other policymakers for the NYPD, has a custom, pattern, practice, and/or procedure of using violence against Blacks.

61. That according to NYPD 2020 Use of Force Data 59% of force used for that year by officers was against Blacks although Blacks make up only 20.2% of New York City's population.

62. That according to NYPD Use of Force Data for 2019 56% of force used for that year by officers was against Blacks although Blacks make up only 20.2% of New York City's population.

63. That according to NYPD Use of Force Data for 2018 56% of force used for that year by officers was against Blacks although Blacks make up only 20.2% of New York City's population.

64. That according to NYPD Use of Force Data for 2017 48% of force used for that year by officers was against Blacks although Blacks make up only 20.2% of New

York City's population.

65. That according to NYPD Use of Force Data for 2016 56% of force used for that year by officers was against Blacks although Blacks make up only 20.2% of New York City's population.

66. That when NYPD officers commit acts of unreasonable violence while working for the NYPD, Defendants KEECHANT SEWELL, NYC and NYPD ratify their officers' unconstitutional acts and assist in covering up their bad acts by charging the battered person with crimes and prosecuting them.

67. That when NYPD officers commit acts of unreasonable violence while working for the NYPD, Defendants KEECHANT SEWELL, NYC and NYPD ratify their officers' unconstitutional acts and assist in covering up their bad acts by finding charges against the officers unsubstantiated.

68. The fact that Defendant BRIAN CHENG has a history of abuse of authority, discourteousness and use of force complaint and charges against him is evidence of the above-stated custom, pattern, practice, and/or procedure, the NYPD, NYC and KEECHANT SEWELL.

69. That the use of force data stated above is evidence of the above-stated custom, pattern, practice, and/or procedure, the NYPD, NYC and KEECHANT SEWELL.

70. That at the time Defendant, BRIAN CHENG used force against Plaintiff no person or law enforcement officer was in imminent danger and no exigent circumstances existed to justify the use of force.

71. That Defendants knew or should have known that their officers were disproportionately using violence against Blacks and were violating their civil rights, and

committing criminal acts, and other egregious misconduct against Blacks but took no action to prevent the conduct.

72. That defendants, NYC, NYPD and KEECHANT SEWELL acted with deliberate indifference toward the NYPD's practice of disproportionately using violence against Blacks

73. That the defendants: NYC, NYPD and KEECHANT SEWELL's unconstitutional practices of disproportionally using violence against Blacks is sufficiently widespread as to have the force of law.

74. That the defendants: NYC, NYPD and KEECHANT SEWELL adopted a policy of indirect racial profiling by targeting racially defined groups for the use of violence that resulted in the disproportionate and discriminatory use of violence against blacks in violation of the Equal Protection Clause.

75. That statistical and anecdotal evidence show that Blacks are treated differently than whites, Blacks are more likely to be subjected to the use of force than whites, despite the fact that whites are more likely to be found with weapons or contraband [*Floyd v. City of N.Y.*, 959 F. Supp. 2d 540, 562 (S.D.N.Y. 2013)].

76. That the historical data from NYCP Use of Force Data demonstrates highest officials of NYC and the NYPD turned a blind eye to the evidence that officers are using force in a racially discriminatory manner.

77. That the defendants, in defending a policy they believe to be effective, willfully ignored overwhelming proof that the policy of targeting "the right people" is racially discriminatory and therefore violates the United States Constitution.

78. That the defendants, in defending a policy they believe to be effective, willfully ignored overwhelming proof that the policy of targeting Blacks is racially

discriminatory and therefore violates the United States Constitution.

79. That the defendants, in defending a policy they believe to be effective, willfully ignored overwhelming proof that the policy of targeting the Black community is racially discriminatory and therefore violates the United States Constitution.

80. That consistent with and as a result of defendants' customs, patterns, practices, and/or procedures, Defendant BRIAN CHENG unjustifiably and unlawfully used unauthorized force against MS CAMPBELL causing her to suffer serious and permanent injuries.

81. That as a direct and proximate result of the defendants', patterns, practices, and/or procedure the Plaintiff's rights, guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution were violated.

82. That as a direct and proximate result of the Defendants' unreasonable and unlawful actions and inactions, the Plaintiff suffered and continues to suffer substantial past and future damages, both compensatory and general, including, but not limited to, medical bills, loss of income, severe emotional distress, mental anguish, embarrassment, humiliation, physical pain and suffering.

83. That Pursuant to *Monell v. Department of Social Services of New York*, 436 U.S. 658 (1978), NYC and NYPD through their policymaker, Defendant KEECHANT SEWELL and other unidentified policymakers are liable for the harms and losses sustained by MS CAMPBELL.

84. That based on the unauthorized and unlawful violation of Plaintiff constitutional rights, by Defendants, plaintiff was damaged in an amount that exceeds the jurisdiction of lower courts.

THIRD CAUSE OF ACTION: Intentional Infliction of Emotional Distress.

85. That Plaintiff hereby incorporates by reference the allegations contained in paragraphs 1-84 with the same force and effect, as if fully set forth below.

86. That Defendant BRIAN CHENG by using unnecessary and unauthorized violence against MS CAMPBELL engaged in actions that were atrocious, intolerable, and so extreme and outrageous as to exceed the bounds of decency.

87. That Defendant BRIAN CHENG acted with the intent of causing Plaintiff to suffer emotional distress from his outrageous conduct.

88. That Defendant BRIAN CHENG acted recklessly to ensure of substantially ensure Plaintiff would suffer emotional distress from his outrageous conduct.

89. That Defendant BRIAN CHENG's actions caused MS CAMPBELL to suffer severe emotional distress as violence was used against her for no reason.

90. That the emotional distress MS CAMPBELL experienced was so severe, no reasonable person could be expected to endure it.

91. That as a direct and proximate result of the Defendants' unreasonable and unlawful actions, the Plaintiff has suffered and continues to suffer substantial past and future damages, both compensatory and general, including, but not limited to, medical bills, loss of income, severe emotional distress, mental anguish, embarrassment, humiliation, physical pain and suffering.

92. That the violence used by Defendant BRIAN CHENG against the Plaintiff was carried out with actual malice.

93. That the violence used by Defendant BRIAN CHENG against the Plaintiff was carried out with actual a conscious, reckless, and outrageous indifference to the

health, safety, and welfare of others, thereby justifying an award of punitive damages to the fullest extent permitted by law.

94. That based on defendants' unauthorized and unlawful infliction of emotional distress, Plaintiff was damaged in an amount the exceeds the jurisdiction of lower courts.

FOURTH CAUSE OF ACTION: Battery

95. That Plaintiff hereby incorporates by reference the allegations contained paragraphs 1-94 with the same force and effect as if fully set forth below.

96. That Defendant BRIAN CHENG intentionally used excessive force against MS CAMPBELL without her consent and without justification causing her to become injured.

97. That as a direct and proximate result of the Defendants' unreasonable and unlawful actions, the Plaintiff has suffered and continues to suffer substantial past and future damages, both compensatory and general, including, but not limited to, medical bills, loss of income, severe emotional distress, mental anguish, embarrassment, humiliation, disfigurement, and physical pain and suffering.

98. That based on the unauthorized and unlawful battery of Plaintiff by Defendants plaintiff was damaged in an amount the exceeds the jurisdiction of lower courts.

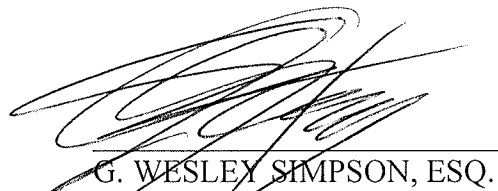
WHEREFORE, the Plaintiff, DIONNE CAMPBELL, demands judgment against the Defendants in the first cause of action in an amount that exceeds the jurisdiction of the lower courts; in the second cause of action in an amount that exceeds the jurisdiction of the lower courts; in the third cause of action in an amount that exceeds the jurisdiction of the lower courts; in the fourth cause of action in an amount that exceeds the jurisdiction of the lower courts; for: a) Compensatory damages for all past and future economic losses and expenses incurred by the Plaintiff as a result of the Defendants' misconduct; b) General damages for all past and future

physical pain, mental suffering, and emotional distress suffered by the Plaintiff; c) Punitive damages to the fullest extent permitted by law; d) Pre-judgment and post-judgment interest; e) Declare that the Defendants' acts, taken in their official capacities, as alleged above, violate Fourth and Fourteenth Amendment of the United States Constitution;

f) Declare that the Defendants' acts, taken in their individual capacities, as alleged above, violate the First and Fourth Amendment to the United States Constitution;

g) Immediately terminate Defendant BRIAN CHENG employment relationship with the NYPD without severance; h) Costs incurred in this action and reasonable attorney fees under 42 U.S.C. §1988; and i) Such other further specific and general relief as may become apparent from discovery as this matter matures for trial.

Dated: Brooklyn, New York
September 15, 2022



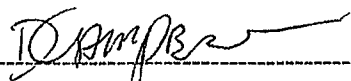
G. WESLEY SIMPSON, ESQ.
G. WESLEY SIMPSON, P.C.
Attorney for Plaintiff
1016 Ralph Avenue, 1st Floor
Brooklyn, New York 11236
(718) 345 8213

VERIFICATION

STATE OF NEW YORK}
 } SS:
COUNTY OF KINGS }

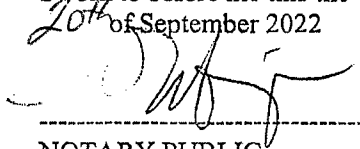
I, DIONNE CAMPBELL, being duly sworn, deposes and says:

I am the plaintiff in the within action. I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the content thereof. The same are true to my own knowledge, except as to matters therein stated to be upon information and belief and as to those matters, I believe them to be true.



DIONNE CAMPBELL

Sworn to before me this the
20th of September 2022



NOTARY PUBLIC

VADIS O. MCKENZIE
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01MC6408715
QUALIFIED IN KINGS COUNTY
MY COMMISSION EXPIRES SEPTEMBER 9, 2024

Index Number Year 2022
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS:

DIONNE CAMPBELL,

Plaintiff(s),

-Against-

THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT;
BRIAN CHENG, and KEECHANT SEWELL,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

G. WESLEY SIMPSON, P.C.
Attorney for plaintiff(s)
1016 Ralph Avenue
Brooklyn, New York 11236
(718) 345 8213

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contents contained in the annexed document are not frivolous.

Dated:

G. WESLEY SIMPSON, P.C.

Service of the within
Admitted.

is hereby

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Notice of Entry That the within is a (Certified) true copy of an Order entered in the office of the clerk of the within named Court on the day of

Notice of Settlement that an Order of which the within is a true copy will be presented for settlement to the Hon. one of the judges of the within named Court, at on the day of , at 9:30 a.m.